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CONFIDENTIAL SETTLEMENT COMMUNICATION
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July 20, 2026

VIA ELECTRONIC MAIL ONLY

Randstad US, LLC
Attn: Legal Department / Office of General Counsel
1 Overton Park Drive, Suite 300
Atlanta, GA 30339
E-mail: complianceofficer@randstad.com

Re: Pre-Filing Demand for Settlement -- Newanforbi v. Randstad US, LLC
Unlawful Use of California Sex Offender Registry Information for Employment in Violation of Cal. Penal Code § 290.46(j)(2)(E); Wrongful Termination; ICRAA Violations
InfoMart Order No. 15780719 | Termination Date: July 15, 2026 | Demand: $85,000.00

To the Randstad US, LLC Legal Department:

I write, pro per, to demand pre-litigation settlement of claims arising from Randstad US, LLC's ("Randstad") unlawful termination of my employment based on my registration in the California Sex Offender Registry. The InfoMart background report Randstad itself ordered returned a clean result on every criminal history search performed -- seven jurisdictions, all "No Record" -- and flagged only the registry listing, under a screening status that reads, in Randstad's own vendor's words, "NEEDS APPROVAL, PER CLIENT CRITERIA." Randstad terminated me by telephone two business days later.

A complete Draft Complaint for Damages, prepared for filing in the Superior Court of California, County of Alameda, has been finalized and names Randstad US, LLC and The RK Logistics Group, Inc. as defendants, asserting six causes of action and demanding trial by jury. I am currently appearing in pro per and am actively seeking counsel on a contingency basis. Once retained, Randstad becomes liable for counsel's fees under Penal Code section 290.46, subdivision (j)(5), and the ICRAA, in addition to all other relief. Resolving this matter before that retention eliminates that exposure.

THE DOCUMENTARY RECORD

- June 30, 2026: I submitted an employment application via Indeed for the "Class C Driver - Bobtail" position listed by RK Logistics Group, Inc. at its Newark, California facility. RK Logistics

sent an automated SMS acknowledgment the same evening confirming receipt of my application.

• July 1, 2026, 8:08 AM: Randstad recruiter Dishon Bryant contacted me by text -- within approximately 12 hours of my RK Logistics application -- stating: "I'm contacting you regarding the class C driver position you applied for at RK Logistics."

• July 7, 2026: Randstad notified me that my "employee status has changed to Rehired." The same afternoon, Randstad Inhouse Services Site Manager II Danyea Watkins, embedded at the RK Logistics Fremont facility, emailed me requesting an MVR authorization form, confirming placement in a CDL commercial driving role. At all relevant times I held a valid California Class C driver's license, and, while the physical card was in transit from the DMV, a temporary Class C license and DMV receipts of procurement establishing my licensure.

• July 7, 2026, 6:22 PM: Randstad submitted a background check to InfoMart LLC (Order No. 15780719) under Billing Code "RK LOGISTICS," Business Unit "RIS RK Logistics Fremont."

• July 13, 2026: InfoMart's report showed every one of seven county and federal criminal history searches returning "No Record." The OFAC, OIG, and GSA exclusion searches were all negative. The sole adverse item in the entire 15-page report was a single line: "Subject is a registered Sex Offender in California." The report's status was "NEEDS APPROVAL, PER CLIENT CRITERIA" -- confirming a predetermined, automated screening criterion, not an individualized review.

• July 13, 2026, 1:31 PM: InfoMart sent me a pre-adverse action notice stating that Randstad was being informed of "criminal or other public record information that may be adverse."

• July 15, 2026: Randstad terminated my employment by telephone -- only two business days after the pre-adverse notice -- without ever providing a written adverse action notice.

THE LAW

California Penal Code section 290.46, subdivision (j)(2)(E), categorically prohibits the use of sex offender registry information "for purposes relating to ... Employment." No exception applies. Randstad did not invoke, and could not invoke, the narrow "protect a person at risk" exception of subdivision (j)(1) -- a CDL bobtail driving assignment does not implicate any identified person at risk.

The InfoMart report's own "NEEDS APPROVAL, PER CLIENT CRITERIA" designation is a documentary admission that the termination was the mechanical output of a predetermined screening rule keyed to registry status, not an individualized employment decision.

Penal Code section 290.46, subdivision (j)(5), makes Randstad liable for actual damages, treble damages up to three times actual damages (minimum $250), attorney's fees, exemplary damages, and a civil penalty of up to $25,000. Independent claims lie under the Investigative Consumer Reporting Agencies Act (Civ. Code § 1786 et seq.) for the absence of any written adverse action notice, under Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167 for wrongful termination in violation of fundamental public policy, under Evidence Code section 669 for negligence per se, and under Business & Professions Code section 17200 for unlawful business practices.

This case will not turn on credibility. Every material fact -- the application timeline, the recruiter's own text messages, the InfoMart report, the pre-adverse notice, and the timing of termination -- is

documented in Randstad's own records and InfoMart's report, copies of which are in my possession.

THE DEMAND

To resolve all claims described herein without the necessity of litigation, I demand the following:

SETTLEMENT PAYMENT: $85,000.00 (Eighty-Five Thousand U.S. Dollars)

- Payable by check or electronic transfer to Brendan Ngwa Nforbi, payment instructions to follow upon acceptance;
- Written confirmation that Randstad has issued binding guidance to its California staffing, recruiting, and background-screening personnel that California Sex Offender Registry information shall not be used, directly or indirectly, as a basis for any employment or placement decision;
- Confirmation that all internal references to the July 15, 2026 termination have been corrected to reflect that Plaintiff is eligible for rehire;
- A written commitment that any future employer or agency inquiry regarding this assignment will be answered only with dates of assignment and "eligible for rehire" status;
- Confidentiality of the settlement amount only; the fact of settlement and non-monetary terms may be disclosed. I will not agree to any non-disparagement clause or to any release broader than the claims arising from the July 15, 2026 termination.

DEADLINE FOR RESPONSE

Randstad must respond in writing by e-mail to bnn.cdl@gmail.com on or before 5:00 p.m. Pacific Time on August 2, 2026. Absent a written acceptance of these terms, or a good-faith counter-offer, by that deadline, the Draft Complaint will be filed in Alameda County Superior Court without further notice.

SETTLEMENT-COMMUNICATION PROTECTION

This letter is offered in compromise of a disputed claim and is inadmissible to prove liability under California Evidence Code section 1152 and Federal Rule of Evidence 408. Nothing in this letter limits my right to introduce the underlying documentary evidence at trial.

RESERVATION OF RIGHTS

Nothing in this letter waives, releases, or limits any claim, right, or remedy. All claims, rights, and remedies are expressly reserved. This letter is not, and shall not be construed as, an offer to settle for any amount less than that stated herein, nor as an admission of fact, law, or comparative fault.

I look forward to your prompt response.

Very truly yours,

/s/ BRENDAN NGEHSI NEWANFORBI

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per

Method of delivery: Electronic mail only.
cc (by e-mail): complianceofficer@randstad.com